

ject to a charge have power to sell or mortgage, which is the case we next proceed to consider.

β. Devise to a person beneficially with a charge of debts. — If a testator charge his debts and devise the estate subject to the charge to *A. and his heirs* not upon trust but *for his own use*, can the beneficiary in this case make a good title? The answer to the question last discussed is an answer also to this, for if where the express trust negatives the intention of conferring a power to sell the trustee can still make a good title, it is evident that he can only do so by virtue of the charge. Any distinction between the two cases would be in favour of the beneficial devisee, for if the trustee in defiance of the express trust can sell, *a fortiori* the devisee can, who is fettered by no such restriction. In both instances the charge operates as a trust for payment of debts, and is attended with all the same consequences. “A [*465] charge,” said Lord *Eldon, “is in substance and effect *pro tanto* a devise of the estate upon trust to pay the debts” (*a*), and “this,” observed Lord St. Leonards, on citing the dictum, “is supported by the current of authorities” (*b*). It is clear that the devisee can, where he also fills the character of executor, make a good title (*c*), and in some of the cases the Court did not in terms rely on the characters being combined (*d*), but it is singular that no authority can be found in which the question whether the devisee alone can make a good title has arisen.

In the Court of Exchequer (*e*) it was said that in a devise to *trustees*, subject to a charge of debts, the trustees could sell; but that a charge in the hands of a *devisee* if the lands were devised, or in the hands of the *heir-at-law* if the lands descended, was a charge only in equity. The Court was there considering, more particularly, the question of *legal*

(*a*) *Bailey v. Ekins*, 7 Ves. 323.

(*b*) *Commissioners of Donations v. Wybrants*, 2 Jon. & Lat. 198.

(*c*) *Elton v. Harrison*, 2 Sw. 276, note; *Elliot v. Merryman*, Barn. 78; *Dolton v. Young*, 6 Madd. 9; *Johnson v. Kennett*, 6 Sim. 384; 3 M. & K. 624; *Eland v. Eland*, 1 Beav. 235, 4 M. & Cr. 420; *Page v. Adam*, 4 Beav.

269; *Corser v. Cartwright*, 8 L. R. Ch. App. 971; affirmed by H. L. 7 L. R. H. L. 731.

(*d*) *Elliot v. Merryman*, *Dolton v. Young*, *Johnson v. Kennett*, *Eland v. Eland*, *ubi supra*; *Colyer v. Finch*, 5 H. L. Ca. 905, 922.

(*e*) *Doe v. Hughes*, 6 Exch. 231.